SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

CASE NO: Civil Appeal No. 8977 of 2014 (YEAR: 2015)

CORAM: T.S. THAKUR, R.F. NARIMAN

Associate Builders
... Appellant(s) / Petitioner(s)
Versus
Delhi Development Authority
... Respondent(s)

Acts Referred:	Arbitration and Conciliation Act, 1996
Sections:	Section 34 Arbitration Act

JUDICIAL HEADNOTE & SUMMARY

Defined parameters of 'public policy of India' under Section 34, holding that merits of an arbitral award cannot be reopened unless award shocks the conscience of court.

RATIO DECIDENDI

The Court held that: Defined parameters of 'public policy of India' under Section 34, holding that merits of an arbitral award cannot be reopened unless award shocks the conscience of court. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in Associate Builders v. Delhi Development Authority (Civil Appeal No. 8977 of 2014) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Arbitration and Conciliation Act, 1996, particularly Section 34 Arbitration Act. Defined parameters of 'public policy of India' under Section 34, holding that merits of an arbitral award cannot be reopened unless award shocks the conscience of court.

OPERATIVE ORDER

ORDER: Decided